

Smt. Rajamma @ Rajalakshmi vs Sri. H C Shivamurthy on 17 August, 2023

Author: G. Narendar

Bench: G. Narendar

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NC: 2023:KHC:29234-DB
MFA No.3055 of 2020

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 17TH DAY OF AUGUST, 2023
PRESENT
THE HON'BLE MR. JUSTICE G. NARENDAR
AND
THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL
MISCELLANEOUS FIRST APPEAL NO.3055 OF 2020 (FC)
BETWEEN:

Digitally
signed by
RUPA V
Location:
HIGH COURT
OF
KARNATAKA

SMT. RAJAMMA @ RAJALAKSHMI
W/O H.C. SHIVAMURTHY
D/O LATE P.A. NINGE GOWDA
AGED ABOUT 54 YEARS
R/O PURA, JENAGADDE POST
CHICKMAGALUR TALUK.

...APPELLANT

(BY SMT. SARITA A.L. ADV.,)
AND:

SRI. H.C. SHIVAMURTHY
S/O LATE CHINNA NAYAK
AGED ABOUT 54 YEARS
AGRICULTURIST
R/O HIREGADDE VILLAGE AND POST
JAYAPURA, KOPPA TALUK.

...RESPONDENT

(BY SRI. SANCHAN JAINANDAN, ADV.,)
THIS MFA IS FILED U/S. 19(1) OF THE FAMILY
COURTS ACT, AGAINST THE JUDGMENT AND DECREE
DATED. 27.10.2014, PASSED IN MC. NO.196/2013, ON
THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT,
CHIKKAMAGALURU, DISMISSING THE PETITION FILED

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U/SEC.13(1)(i-a) AND (i-b) OF THE HINDU MARRIAGE ACT.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS DAY, VIJAYKUMAR A. PATIL J, DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is filed under Section 19(1) of the Family Courts Act, 1984 against the judgment dated 27.10.2014 passed in M.C.No.196/2013 by the Principal Judge, Family Court, Chikmagalur, (for short, 'the Family Court') by which the petition filed by the appellant-wife under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of the cruelty and desertion was dismissed.

2. Learned counsel for the appellant and the learned counsel for the respondent submit that at the intervention of elders and well-wishers, the appellant-wife and the respondent-husband, in the conciliation, have arrived at an amicable settlement of the dispute and accordingly they have filed a compromise petition under Order XXIII Rule 3 of the CPC.

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3. The terms of the compromise petition read as under:

"1. The appellant and respondent agree that their marriage dated 29.08.2004 performed at Annapoorneshwari Temple, horanadu, Mudigere Taluk be dissolved as prayed for in the above appeal.

2. Both the parties shall withdraw all the allegations and cases made against each other and shall not institute any fresh proceedings hereinafter.

3. Neither the appellant nor Respondent shall claim any maintenance or alimony against each other and the present compromise petition shall be treated as final and full settlement of all their claims.

4. The appellant and respondent have voluntarily out of their free consent have agreed to file present petition as an outcome of conciliation held between them.

5. Both the parties shall not interfere with personal lives of each other hereinafter. They shall not create any situations which may NC: 2023:KHC:29234-DB defame or lower the reputation of parties or their family members in the society.

Wherefore, it is respectfully prayed that the present compromise petition be accepted by dissolving the marriage dated 29.08.2004 performed at Annapoorneshwari Temple, Horanadu, Mudigere Taluk in above terms as prayed for in the interest of justice and equity."

4. We have gone through the terms of the compromise petition, they are not opposed to public policy and not opposed to law. The learned counsels for the parties respectively identify the appellant-wife and the respondent-husband, who are present before the Court. The parties to the proceedings express that they have entered the compromise on their own volition, they have understood the terms of the compromise and they have affixed their signature.

5. The compromise petition is placed on record.

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6. The appeal is disposed of in terms of the compromise petition by dissolving the marriage of the appellant and respondent solemnized on 29.08.2004.

No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE BSR